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TAB 2



Board of Education Report

File #: Rep-100-24/25, **Version:** 1

Approval of Facilities Contracts Actions

January 14, 2025

Procurement Services Division - Facilities Contracts

Action Proposed:

Ratify the Procurement Services Division (PSD) contract actions taken by Facilities Contracts under delegated authority as listed in Attachment "A" including: award of advertised construction contracts; approval of change orders; completion of contracts; award of informal contracts; award of architectural and engineering contracts; extra services/amendments for architectural and engineering contracts and approve the proposed contract listed in Attachment B including a Major Modernization Project contract at Fairfax High School.

Background:

Facilities Contracts staff prepares monthly reports for contract actions necessary for the execution of projects approved by the Board and contained in the FSD Strategic Execution Plan (SEP), and for the maintenance and operation of District facilities in accordance with District policies and Board-delegated authority. As described in the November 12, 2013, Board Report #048-13/14 Informative, detailed information is provided on the Facilities Services website.

Expected Outcomes:

Approval of these items will allow services provided by these contracts to proceed in support of FSD projects, District policies and goals, and the Board-approved FSD-SEP.

Board Options and Consequences:

The Board can approve all actions presented or postpone selected actions pending receipt of additional information. Non-ratification of actions awarded under delegated authority in Attachment "A" will result in the immediate discontinuance of services. While non-ratification may be legally defensible, it will likely result in costly litigation over discontinued payments or if the District attempts to reclaim payments made to a vendor. District costs will likely increase as fewer contractors compete for future procurements.

Policy Implications:

This action does not change District policy and conforms to California Education Code section 17604 that permits the Board of Education to delegate authority for Facilities Contracts (Board Report #444-17/18), which the Board exercised on May 8, 2018.

Budget Impact:

The contract actions presented are within the budget authority previously approved by the Board. Unless indicated otherwise, all contract actions are Bond funded.

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Student Impact:

The contract actions will help ensure that the students are provided with safe and healthy environments, and up to-date facilities that promote learning.

Equity Impact:

Not Applicable.

Issues and Analysis:

There are no policy implications on these agreements.

Attachments:

Attachment “A” - Ratification of Facilities Contracts Actions Awarded Under Delegated Authority

Attachment “B” - Approval of Facilities Contracts Actions Not Under Delegated Authority

Linked Materials

Previously adopted Board report(s) referenced:

- In the background [Board Report No. 048-13/14 <https://drive.google.com/file/d/1q-FUsW7AXKe8h0A4KY-J3OVby30HueD6/view>](https://drive.google.com/file/d/1q-FUsW7AXKe8h0A4KY-J3OVby30HueD6/view), dated November 12, 2013, Informative
- In the policy implications [Board Report No. 444-17/18 <https://drive.google.com/file/d/16sRw7yPe-tScbr2wG8AMTWB9QSeiQazM/view>](https://drive.google.com/file/d/16sRw7yPe-tScbr2wG8AMTWB9QSeiQazM/view), dated May 8, 2018.

Informatives:

Not Applicable.

Submitted:

12/09/24

RESPECTFULLY SUBMITTED,



ALBERTO M. CARVALHO
Superintendent

APPROVED BY:



PEDRO SALCIDO
Deputy Superintendent,
Business Services & Operations

REVIEWED BY:



DEVORA NAVERA REED
General Counsel

☒ Approved as to form.

APPROVED BY:



SUNG YON LEE
Deputy Chief Business Officer
Business Services and Operations

REVIEWED BY:



NOLBERTO DELGADILLO
Deputy Chief Business Officer, Finance

☒ Approved as to budget impact statement

APPROVED & PRESENTED BY:



MATTHEW A. FRIEDMAN
Interim Chief Procurement Officer
Procurement Services Division

REVIEWED BY:



KRISZTINA TOKES
Chief Facilities Executive

☒ Approved as to facilities impact

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

A. AWARD OF ADVERTISED CONSTRUCTION CONTRACTS

Item A

<u>CONTRACTOR</u>	<u>IDENTIFI- CATION NO.</u>	<u>DESCRIPTION</u>	<u>CONTRACT TERM</u>	<u>AMOUNT</u>
AP Construction Group, Inc.	2410048	<u>Saturn Street ES</u> HVAC Replacement Board Member: <u>Sherlett Hendy Newbill</u>	04/30/24 – Completion	\$6,080,000 Bond Funds (100%)

Ratification of formally competed best-value contract selected from three (3) bids received to provide HVAC replacement at Saturn Street ES as authorized on February 9, 2021 (Board Report No. 225-20/21).

The project will provide a new heating, ventilation, and air conditioning (HVAC) system in the Main, Assembly, Classroom, and Kindergarten Buildings, and three portable buildings. Pillar 4 of the Strategic Plan is supported by this action.

The contractor has worked with the District since 2016.

Requester:

Steve Boehm, Interim Director of Project Execution
Facilities Services Division

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

AWARD OF ADVERTISED CONSTRUCTION CONTRACTS

Item B

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>DESCRIPTION</u>	<u>CONTRACT TERM</u>	<u>AMOUNT</u>
Best Contracting Services, Inc.	2510019	<u>Coeur D’Alene Avenue ES</u> Roofing Replacement Project Board Member: <u>Nick Melvoin</u>	11/08/24 – Completion	\$1,823,580 Bond Funds (100%)

Ratification of formally competed contract selected from two (2) bids received to deliver a roofing replacement project at Coeur D’Alene Avenue ES as authorized on October 12, 2021 (Board Report No. 082-21/22).

The project will provide approximately 44,600 square feet of new roofing at 16 buildings including the installation of new gutters and downspouts. The roofs that are being replaced are beyond their useful life. Pillar 4 of the Strategic Plan is supported by this action.

The contractor has worked with the District since 2013.

Requester:

Mark Cho, Deputy Director of Facilities Maintenance & Operations
Facilities Services Division

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

AWARD OF ADVERTISED CONSTRUCTION CONTRACTS

Item C

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>DESCRIPTION</u>	<u>CONTRACT TERM</u>	<u>AMOUNT</u>
Empire Construction Service, Inc. (SBE)	2510021 / C7679	<u>Stevenson College and Career Preparatory Athletic Facilities Upgrades Board Member: <u>Dr. Rocío Rivas</u></u>	12/16/24 – Completion	\$1,104,026 Bond Funds (100%)

Ratification of formally competed contract selected from three (3) bids received to provide athletic facilities upgrades at Stevenson College and Career Preparatory as authorized on June 14, 2022 (Board Report No. 299-21/22).

The project will upgrade the exterior basketball and volleyball courts, including solar reflective coating. Pillar 4 of the Strategic Plan is supported by this action.

The contractor is new to the District.

Requester:

Mark Cho, Deputy Director of Facilities Maintenance & Operations
Facilities Services Division

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

Item D

B. APPROVAL OF CHANGE ORDERS

November 2024 = \$4,270,911

		<u>QUANTITY</u>	<u>AMOUNT</u>
	i. New Construction contract change orders that do not individually exceed 10 percent for November 2024 (Average Transaction: \$35,435 Median Transaction: \$6,377)	25	\$885,879
	ii. New Construction contract credit change orders for November 2024:	0	\$0
	iii. Existing Facilities contract change orders that do not individually exceed 15 percent for November 2024 (Average Transaction: \$16,538; Median Transaction: \$6,822):	232	\$3,836,852
	iv. Existing Facilities contract credit change orders for November 2024:	10	<\$451,820>
	v. Existing Facilities contract change orders that individually exceed 15 percent (but do not exceed 25 percent) for November 2024, requiring 75 percent approval by the Board:	0	\$0

C.	COMPLETION OF CONTRACTS – November 2024	21	\$19,690,367
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D.	AWARD OF INFORMAL CONTRACTS (Not Exceeding \$114,500)		
	A & B Letters for November 2024 (Average Transaction: \$52,102; Median Transaction: \$47,500)	25	\$1,302,569

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

AWARD OF ARCHITECTURAL AND ENGINEERING CONTRACTS

Item E

<u>CONTRACTOR</u>	<u>IDENTIFI- CATION NO.</u>	<u>DESCRIPTION</u>	<u>CONTRACT TERM</u>	<u>AMOUNT</u>
Timothy Chan Young, dba Chan Young Architects, dba CY Architects (SBE)	2420034/ C3998	<u>Los Angeles MS</u> Classroom Upgrade Project Board Member: <u>Tanya Ortiz Franklin</u>	10/18/24 – closeout	\$497,591 Bond Funds (100%)

Ratification of design contract to provide architectural and engineering services for site analysis, construction document, bid/proposal, award, construction, and closeout phases for the classroom upgrade project at Los Angeles Middle School, as authorized on November 14, 2023 (Board Report No. 111-23/24). Services were procured via RFQ R-19012.

The project includes upgrades to approximately 59 classrooms utilized for instruction, special education and school set-asides within permanent and relocatable buildings. Each classroom within a school site has unique conditions and will be surveyed to understand deficiencies that need to be addressed. Based on the individual needs of each classroom, the scope may include upgrades to technology, whiteboards, tack boards, window blinds, paint, and security locks. The project also includes providing new classroom furniture, replacing damaged ceiling tiles, and other upgrades required to comply with local, state and federal requirements.

The contractor has worked with the District since 2006 as a subconsultant.

These services provide operational effectiveness and modernize infrastructure. Pillar 4 of the Strategic Plan is supported by this action.

Requester:

Issam Dahdul, Director of Facilities Planning and Development
Facilities Services Division

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

AWARD OF ARCHITECTURAL AND ENGINEERING CONTRACTS

Item F

<u>CONTRACTOR</u>	<u>IDENTIFI- CATION NO.</u>	<u>DESCRIPTION</u>	<u>CONTRACT TERM</u>	<u>AMOUNT</u>
J.C. Chang & Associates, Inc. (SBE)	2420040/ C4013	<u>Perez Special Education Center</u> Accessibility Enhancement Project Board Member: <u>Dr. Rocío Rivas</u>	10/23/24 – closeout	\$387,953 Bond Funds (100%)

Ratification of design contract to provide architectural and engineering services, site investigation/preliminary planning, construction document, bid/proposal, award, construction, and closeout phases for the accessibility enhancement project at Perez Special Education Center, as authorized on June 4, 2024 (Board Report No. 304-23/24). Services were procured via RFQ R-24025.

The project site spans 8.11 acres and is comprised of one special education program. The building area is approximately 110,560 square feet and includes three single-story permanent buildings and one multi-story permanent building. The permanent buildings were constructed between 1926 and 1981. As of the 2023-2024 Electronic Capacity Assessment Review (E-CAR), the school serves 237 students, and all have been identified as having a disability.

The site has been assigned a Category Two accessibility level. In order to meet the criteria for Category Two, upgrades to three buildings are required including corrections, installation, or replacement of: one concrete ramp, 10 restrooms, seven drinking fountains, 26 paths of travel, one changing room, two parking areas, one bus loading zone, and other accessibility upgrades such as door hardware, playground components/matting, railings, and any other required improvements or mitigations to ensure compliance with local, state and/or federal facilities requirements.

The contractor has worked with the District since 1998.

These services provide operational effectiveness and modernize infrastructure. Pillar 4 of the Strategic Plan is supported by this action.

Requester:

Issam Dahdul, Director of Facilities Planning and Development
Facilities Services Division

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

AWARD OF ARCHITECTURAL AND ENGINEERING CONTRACTS

Item G

<u>CONTRACTOR</u>	<u>IDENTIFI- CATION NO.</u>	<u>DESCRIPTION</u>	<u>CONTRACT TERM</u>	<u>AMOUNT</u>
Cannon/Parkin, Inc. dba Cannon Design	2420049/ C6770	<u>Carson HS</u> Site and Infrastructure Analysis for the Classroom Replacement Project Board Member: <u>Tanya Ortiz Franklin</u>	10/17/24 – closeout	\$293,793 Bond Funds (100%)

Ratification of design contract to provide architectural and engineering services, specifically site infrastructure analysis for the classroom replacement project at Carson High School, as authorized on March 12, 2024 (Board Report No. 211-23/24). Services were procured via RFQ R-24025.

The project includes, but is not limited to, construction of approximately thirty (30) classrooms, support and administrative spaces, and a shade structure. Replacement of the existing softball field impacted by the project development. Demolition of twenty (20) existing relocatable buildings containing thirty-seven (37) classrooms and associated support spaces. Painting the exterior of existing buildings and structures. Improvements necessary to target the District's goal for schoolyards to be thirty percent (30%) green/natural. At Eagle Tree Continuation High School, replacement of the existing relocatable buildings and installation of a lunch shelter and hardcourts. Site improvements include new outdoor learning areas, parking, utility upgrades, landscaping, hardscaping, , fencing, gates, security enhancements, and accessibility upgrades. Improvements as required by the Americans with Disabilities Act (ADA), Division of the State Architect (DSA), California Environmental Quality Act (CEQA), Department of Toxic Substances Control (DTSC), and any other required improvements or mitigations to ensure compliance with local, state, and federal requirements.

The contractor has worked with the District since 2020.

These services provide operational effectiveness and modernize infrastructure. Pillar 4 of the Strategic Plan is supported by this action.

Requester:

Issam Dahdul, Director of Facilities Planning and Development
Facilities Services Division

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

AWARD OF ARCHITECTURAL AND ENGINEERING CONTRACTS

Item H

<u>CONTRACTOR</u>	<u>IDENTIFI- CATION NO.</u>	<u>DESCRIPTION</u>	<u>CONTRACT TERM</u>	<u>AMOUNT</u>
NAC, Inc. dba NAC Architects	2420052/ C7424	<u>Bell HS</u> Site and Infrastructure Analysis for the Classroom Replacement Project Board Member: <u>Karla Griego</u>	10/22/24 – completion	\$228,006 Bond Funds (100%)

Ratification of design contract to provide architectural and engineering services, specifically site and infrastructural analysis for the classroom replacement project at Bell High School, as authorized on June 4, 2024 (Board Report No. 297-23/24). Services were procured via RFQ R-24025.

The project includes, but is not limited to, demolition and/or removal of 10 existing relocatable buildings containing 15 classrooms and associated support spaces and 3 permanent buildings containing 2 music classrooms, practice gym, support and administrative spaces, and storage. New two-story classroom building with twenty-five (25) new classrooms (twenty (20) general classrooms, two (2) music, one (1) art, two (2) Special Education), Administration Offices, and a Multipurpose Room. Outdoor Learning Environments (OLEs), landscaping, and hardscaping including added trees. Improvements necessary to target the District's goal for schoolyards to be thirty (30%) green/natural. Parking resurfacing and Electric Vehicle Supply Equipment (EVSE) Charging Stations. Upgrade utility infrastructure. Fences, gates, site furnishings and accessories. Requirements from the Americans with Disabilities Act (ADA), Division of the State Architect (DSA), California Environmental Quality Act (CEQA), Department of Toxic Substances Control (DTSC), or other improvements to ensure compliance with local, state and federal requirements.

The contractor has worked with the District since 2014.

These services provide operational effectiveness and modernize infrastructure. Pillar 4 is supported by this action.

Requester:

Issam Dahdul, Director of Facilities Planning and Development
Facilities Services Division

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

EXTRA SERVICES / AMENDMENTS FOR ARCHITECTURAL AND ENGINEERING CONTRACTS **\$354,334**

Item I

CONTRACT NOS.	1620141/C3074; 1620141/C3074; 1620141/C3074; 1920019/C625; 2220021/C2878; 2420014/C420
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Extra services are for design work that is not covered under the original Agreement. October Extra Services are listed at the following link: [BOE 100 Extra Services](#)

These services provide operational effectiveness and modernize infrastructure. Pillar 4 of the Strategic Plan is supported by this action.

ATTACHMENT B
APPROVAL OF CONTRACTS NOT UNDER DELEGATED AUTHORITY

A. APPROVAL OF DESIGN-BUILD CONTRACT **\$142,998,000**

ITEM J

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>DESCRIPTION</u>	<u>AMOUNT</u>
Pinner Construction Co., Inc.	2410057	<u>Fairfax HS</u> Authorization to award a formally competed contract for Major Modernization in partnership with DLR Group Inc., selected via design build (Education Code 17250) procurement method. Board Member: <u>Nick Melvoin</u>	\$142,998,000 Bond Funds (100%)

Authorization to award a formally competed design-build contract (Education Code Section 17250) selected from two proposals received to design, construct, and deliver the Major Modernization Project at Fairfax HS. [Click here to view project scope, schedule, and budget.](#)

Pillar 4 of the Strategic Plan is supported by this action.

Contract Term: Contract execution through DSA certification and closeout

Contract Value: \$142,998,000

Requester:

Issam Dahdul, Director of Facilities Planning and Development
Facilities Services Division